1957, and September 22, 1959, both dates inclusive, or $3,000 with respect to moving expenses incurred or direct loss of property suffered on or after September 23, 1959. If the total of the actual moving expenses incurred on or after June 30, 1961, and prior to October 2, 1962, is greater than $3,000, the maximum relocation payment that may be made or recognized in the case of a business concern, for which reimbursement or compensation is not otherwise made, shall be the total of such actual moving expenses. If the total of the actual moving expenses incurred on or after October 2, 1962, is greater than $3,000, the maximum relocation payment that may be made or recognized in the case of a business concern, for which reimbursement or compensation is not otherwise made, shall be the total of such actual moving expenses or $25,000, whichever is less.

(3) *Maximum moving distance.* If a business concern moves beyond 100 miles from the boundary of the city, town, or village, as the case may be, in which the project area is located, a relocation payment for its moving expenses may not be made in excess of the reasonable and necessary expenses for moving such distance of 100 miles.

(b) *Small business displacement and relocation adjustment*—(1) *Fixed amount—small business displacement.* A small business displacement payment shall be $1,500.

(2) *Maximum amount—relocation adjustment.* The total relocation adjustment payment that may be made for a family or elderly individual shall be an amount not to exceed $500 which, when added to 20 percent of the annual income of the family or individual at the time of displacement, equals the average annual gross rental required for a decent, safe, and sanitary dwelling of modest standards adequate in size to accommodate the family or individual (in the urban renewal area or in other areas not generally less desirable in regard to public utilities and public and commercial facilities), as determined by the LPA.

§ 3.110 Determinations in condemnation proceedings.

Notwithstanding any other provision of the regulations in this subpart, when property is acquired by proceedings in condemnation, and the amount of the judgment includes an allowance for reasonable and necessary moving expenses or any actual direct loss of property, or for both, the portion of the judgment representing compensation for these items, if separately stated, shall be entitled to recognition as a relocation payment in an amount not to exceed the applicable dollar limitations of § 3.109: *Provided*, That the allowance for actual direct loss of property makes no compensation for loss of goodwill or profit.

Effective as of the 13th day of January 1965.

[SEAL] WILLIAM L. SLAYTON,
Urban Renewal Commissioner.

[F.R. Doc. 65-376; Filed, Jan. 12, 1965; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3522]

[Arizona 033859; Misc. 88708]

ARIZONA

Withdrawal for Parker-Davis Project; Partial Revocation of Executive Order 8647 of January 22, 1941, and Public Land Order 559 of February 11, 1949 (Havasu Lake National Wildlife Refuge)

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), and by virtue of the authority contained in the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), as amended and supplemented, it is ordered as follows:

1. Subject to valid existing rights, the following described public lands, which are under the jurisdiction of the Secretary of the Interior, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (Chap. 2, Title 30, U.S.C.), but not from leasing under the mineral leasing laws, and reserved for the Parker-Davis Project:

MISCELLANEOUS 88708

GILA AND SALT RIVER MERIDIAN

T. 11 N., R. 18 W.,
Sec. 3, all.
T. 12 N., R. 18 W.,
Sec. 19, lots 1, 2, 3, N½ of lot 4, E½W½, E½;
Sec. 20, SW¼.
T. 12 N., R. 19 W.,
Sec. 4, lots 3 and 4, S½;
Sec. 5, lots 1, 2, 3, 4, SE¼;
Sec. 9, NE¼, N½NW¼, N½SW¼NW¼, SE¼NW¼, N½NE¼SW¼, SE¼NE¼SW¼, N½SE¼, N½S½SE¼;
Sec. 13, S½;
Sec. 14, W½, SE¼;
Sec. 15, NE¼, N½N½NW¼, S½NW¼NW¼, SE¼NE¼NW¼, SE¼SE¼NW¼, E½NE¼SW¼, SW¼NE¼SW¼, N½SE¼, NW¼SW¼SE¼, E½SE¼SE¼;
Sec. 23, N½N½, W½SW¼NE¼, NE¼SE¼NE¼, N½S½NW¼, SE¼SW¼NW¼.
T. 13 N., R. 19 W.,
Sec. 19, lots 3, 4, E½SW¼, SE¼;
Sec. 29, W½;
Sec. 31, E½NE¼, N½NW¼NE¼, E½SW¼NE¼, NE¼SE¼, E½NW¼SE¼;
Sec. 32, W½, SE¼;
Sec. 33, SW¼.

The areas described aggregate 5,458.63 acres.

2. Executive Order No. 8647 of January 22, 1941, and Public Land Order No. 559 of February 11, 1949, which established and enlarged the Havasu Lake National Wildlife Refuge, Arizona and California, are hereby revoked so far as they affect the following described lands:

(ARIZONA 033859)

GILA AND SALT RIVER MERIDIAN

T. 11 N., R. 18 W.,
Sec. 4, Lot 3, Lot 4, S½NW¼, SW¼;
Sec. 5 (fractional);
Sec. 8 (fractional);
Sec. 9, Lots 1, 2, 3, 4, W½NE¼, SE¼NE¼, N½NW¼, SE¼NW¼, N½SE¼;
Sec. 10, S½N½, S½;
Sec. 15, N½, N½SW¼, SE¼;
Sec. 16 (fractional).
T. 12 N., R. 18 W.,
Sec. 19, Lot 4;
Sec. 30, Lots 1, 2, 3, 4, 5, SW¼NE¼, E½NW¼, N½SE¼, SE¼SE¼;
Sec. 31 (fractional);
Sec. 32, Lots 1, 2, W½NW¼, E½SW¼, S½SE¼.
T. 12 N., R. 19 W.,
Sec. 5, S½SW¼;
Sec. 6, Lots 4, 5, 6, E½SW¼, S½SE¼;
Sec. 7 (fractional);
Sec. 8, Lots 1, 2, 3, 4, 5, NE¼NE¼;
Sec. 9, Lots 1, 2, SW¼NW¼, E½SW¼, S½SE¼;
Sec 15, Lot 1, NW¼, N½SW¼, SE¼SW¼, S½SE¼;
Sec. 16, Lots 1, 2, 3, 4, NE¼;
Sec. 22, Lots 1, 2, 3, 4, NE¼;
Sec. 23, Lots 1, 2, 3, 4, S½NE¼, S½NW¼;
Sec. 24, Lot 1, N½SW¼, SE¼SW¼, S½SE¼;
Sec. 25 (fractional).
T. 13 N., R. 19 W.,
Sec. 30, Lot 4, SE¼SW¼;
Sec. 31, Lots 1, 2, 3, 4, W½NE¼, E½NW¼, N½SE¼, SE¼SE¼.
T. 12 N., R. 20 W.,
Sec. 1 (fractional).
T. 13 N., R. 20 W.,
Sec. 4, W½, W½SE¼;
Sec. 5 (fractional);
Sec. 8 (fractional);
Sec. 9;
Sec. 14, SW¼SW¼;
Sec. 15, S½NW¼, W½SE¼, SE¼SE¼, SW¼;
Sec. 16;
Sec. 17 (fractional);
Sec. 20 (fractional);
Sec. 21 (fractional);
Sec. 23, Lots 1, 2, 3, NW¼NW¼, SE¼NW¼, E½SW¼, SE¼;
Sec. 25, Lots 1, 2, 3, SW¼NE¼, NW¼, N½SE¼, SW¼SE¼SE¼;
Sec. 26 (fractional);
Sec. 36 (fractional);
Sec. 22 (fractional).

The areas described, including the public and nonpublic lands, aggregate 8,590.56 acres. The public lands for the most part are included in existing withdrawals for reclamation purposes.

3. Until 10 a.m. on July 9, 1965, the State of Arizona shall have a preferred right of application to select the public lands released from withdrawal by paragraph 2 of this order and not otherwise withdrawn, as provided by R.S. 2276, as amended (43 U.S.C. 852). On and after that date and hour the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals and the requirements of applicable law. All valid applications including applications and offers under the mineral leasing laws, received at or prior to 10 a.m. on February 13, 1965, shall be considered as simultaneously filed at that time. Those filed thereafter shall be considered in the order of filing.

4. The public lands restored by this order have been open to location for

metalliferous minerals. They will be open to location for nonmetalliferous minerals after 10 a.m. on July 9, 1965.

The public lands released from withdrawal by paragraph 2 of this order, and which are open to the operation of the public land laws by paragraph 3 hereof, are described as follows:

GILA AND SALT RIVER MERIDIAN

T. 12 N., R. 19 W.,
Sec. 9, N½SW¼NW¼, N½NE¼SW¼, SE¼NE¼SW¼, N½S½SE¼;
Sec. 15, NW¼NW¼, N½NE¼NW¼, SE¼NE¼NW¼, SE¼SE¼NW¼, E½NE¼SW¼, SW¼NE¼SW¼, NW¼SW¼SE¼, E½SE¼SE¼;
Sec. 23, N½S½NW¼, SE¼SW¼NW¼, W½SW¼NE¼, NE¼SE¼NE¼.

The areas described aggregate approximately 310 acres.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Phoenix, Ariz.

JOHN A. CARVER, Jr.,
Acting Secretary of the Interior.

JANUARY 8, 1965.

[F.R. Doc. 65-374; Filed, Jan. 12, 1965; 8:48 a.m.]